

From: Jacob Bevier bevier19jac@icloud.com

Subject: Re: My best idea for a way forward

Date: November 17, 2025 at 12:18:30 PM

To: sarahjbraganini@gmail.com sarahjbraganini@gmail.com

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Hey Sarah,

When you get a chance please look this over. I expanded on the email i sent to you last week, what do you think about below?

Hi Andrew and Jim,

I reviewed the NDA with my counsel, and there are only two clarifications they require before I can sign. These aren't changes to the business terms — just standard IP protection language for founders who are bringing an existing patent-pending product to a manufacturer for evaluation.

As you know, we're not coming to Spray as a typical vendor seeking filling or formulation services. We are approaching this as a company with a patent-pending invention that needs to be evaluated for potential partnership and manufacturing. In these situations, industry standards handle IP differently because the inventor must retain rights to their pre-existing and independently developed technology.

At the moment, Section 4 includes language stating that:

- “any protocol, software, algorithm, technique and/or methodology developed during its association with Spray shall be the property of Spray,” and
- the other party “shall not file any application for seeking intellectual property rights,” and
- the other party “shall not oppose” any intellectual property application filed by Spray.

This wording is not acceptable for companies presenting patented or patent-pending technology, because it can unintentionally transfer ownership of the inventor's IP or restrict their ability to protect improvements. These provisions are designed for vendors or contractors working *for* Spray — not for an external company sharing its own proprietary invention *with* Spray.

To avoid that misunderstanding, my counsel requires two standard clarifications:

1. Each party retains ownership of their pre-existing and independently-developed intellectual property.
2. Any jointly developed work would require a separate written agreement outside of the NDA.

These points are industry-standard whenever a company shares a patent-pending concept with a potential manufacturing partner. They don't expand our rights or limit Spray's rights in any way — they simply ensure that the NDA operates strictly as a confidentiality agreement, not an unintended IP assignment.

We're excited to move forward and want to keep everything clean and clear on both sides, so this is really just a legal housekeeping step. I'm happy to sign immediately once those two clarifications are included.

Thank you all.

Very respectfully,

Very respectfully,

Jacob Bevier

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On Nov 16, 2025, at 1:05 PM, Jacob Bevier <bevier19jac@icloud.com> wrote:

Hey Sarah,

Just wanted to see what you thought about the following email draft. It will at least give us some to start with before we respond.

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Hi Andrew and Jim,

I reviewed the NDA with my counsel, and there are only two clarifications they require before I can sign. These aren't changes to the business terms — just standard IP protection language for founders who are bringing an existing patent-pending product to a manufacturer for evaluation.

These clarifications protect both parties and avoid any accidental confusion down the road:

1. Each party retains ownership of their pre-existing and independently-developed intellectual property.
2. Any jointly developed work would require a separate written agreement outside of the NDA.

These points are industry-standard whenever a company is sharing a patent-pending concept with a potential manufacturing partner, and they don't expand our rights or limit Spray's rights in any way. They simply ensure that the NDA operates as a confidentiality agreement — not an unintended transfer of ownership.

We're excited to move forward and want to keep everything clean and clear on both sides, so this is really just a legal housekeeping step. I'm happy to sign immediately once those two clarifications are included.

Thank you all.

Very respectfully,

Jacob Bevier

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